



File No.: EXP202310384

RESOLUTION OF EXPIRATION OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 12, 2023, a complaint was filed with the Spanish Agency for Data Protection, with entry registration number REGAGE23e00047065443, against FENIX INTERNATIONAL LIMITED. The reasons for the complaint are as follows:

The complaint was filed by the Attorney General's Office as a result of a request from thirty-two secondary education, baccalaureate, and vocational training teachers, which highlighted the risk situation arising from minors' access to technological platforms and social networks and the need to establish limits and access controls to certain content.

According to the complaint, certain technology companies, such as the one under investigation, create, develop, and market products and applications with content that is harmful to the mental health of minors without establishing appropriate limits and access controls to them.

Considering the relevance of the information, this Agency deemed it necessary to thoroughly understand the described facts, particularly the operation of the OnlyFans platform, operated by the investigated company, from the perspective of access control by minors and the regime for providing consent, as well as the treatments carried out to determine the consequences that may arise for the rights and freedoms of individuals.

SECOND: On July 24, 2023, the director of the Spanish Agency for Data Protection decided to initiate ex officio preliminary investigation proceedings against FENIX INTERNATIONAL LIMITED.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out the preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD.

LEGAL GROUNDS

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I

Competence

In accordance with the functions conferred by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) to each control authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve these investigation proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Investigation Actions

Article 67 of the LOPDGDD states the following regarding preliminary investigation actions:

"1. Before adopting the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigation actions in order to achieve a better determination of the facts and circumstances that justify the

processing of the proceedings.

The Spanish Agency for Data Protection shall act in any case when the investigation of treatments involving massive traffic of personal data is necessary.

2. The preliminary investigation actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of eighteen months from the date of the admission agreement or from the date of the agreement deciding its initiation when the Spanish Agency for Data Protection acts on its own initiative or as a result of communication sent to it by the control authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

III

Expiration of Proceedings

In relation to the preliminary actions, the Regulation for the Development of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose, or prove incompatible with the provisions of the GDPR and the LOPDGDD, in its Article 122.4 states that “The expiration of the term without an agreement to initiate sanctioning proceedings being issued and notified will result in the expiration of the preliminary actions.”

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In accordance with the provisions of the transcribed articles, the preliminary proceedings shall be deemed expired if, after more than eighteen months from the date of admission of the claim for processing, no decision has been made and notified regarding the initiation of sanctioning proceedings.

In the present case, the computation of the eighteen-month maximum duration of the preliminary proceedings began on July 24, 2023, and is currently still pending completion, therefore they must be declared expired.

IV

Initiation of new investigative proceedings

On the other hand, Article 95.3 of the aforementioned LPACAP states:

“The expiration shall not, by itself, produce the prescription of the actions of the individual or the Administration, but the expired proceedings shall not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had the expiration not occurred may be incorporated into this new procedure. In any case, the procedures for allegations, proposal of evidence, and hearing of the interested party must be completed in the new procedure.”

In this regard, the National Court considers (Judgment of July 10, 2013) that “the declaration of expiration of the preliminary investigative proceedings initiated by the Spanish Agency for Data Protection does not pose any obstacle for said entity to initiate or restart other preliminary investigative proceedings regarding the same facts, as long as the prescription period for the administrative infraction under investigation has not elapsed.”

In the present proceedings, the investigation has not yet concluded as it has proven to be a process of enormous complexity both from a technical standpoint and due to the volume of documentation that must be analyzed and studied.

Consequently, given that the facts under investigation are not prescribed, instructions are given to the General Subdirectorate of Data Inspection to initiate new investigative proceedings.

Therefore, in accordance with the aforementioned, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present preliminary investigative proceedings.

SECOND: TO OPEN new investigative proceedings and incorporate into these new proceedings the documentation that comprises the preliminary proceedings declared expired by this act.

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THIRD: TO NOTIFY this Resolution to FENIX INTERNATIONAL LIMITED and to the complainant. Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

907-120624

Olga Pérez Sanjuán

The General Subdirector of Data Inspection, in accordance with Article 48.2 of the LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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